
BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-001903

STIPULATION FOR INTERIM CESSATION OF PRACTICE

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
ROSALIND R. SMITH, LICENSE NO. LPC 3645,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("the Board") and Rosalind R. Smith, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation for Interim Cessation of Practice ("Stipulation").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. On May 25, 2012, the Board reviewed case number 2012-001903 and subsequently concluded that Respondent may have violated the Mental Health Practice Act, §12-43-101, *et. seq.*, C.R.S., and may not be able to practice professional counseling with reasonable skill and safety to her clients.
4. The parties have agreed to stay potential disciplinary proceedings pending the outcome of a comprehensive mental status evaluation, including substance abuse, and a determination of the level of care, if any, required for Respondent. Therefore, the parties have agreed to enter into this Stipulation, pursuant to which disciplinary proceedings are stayed, until the above matters are completed and the Board has reviewed the report of and all materials related to the evaluation and made a final determination on the case.
5. Respondent agrees that she will not engage in the practice of professional counseling, as defined in §12-43-601(4), C.R.S., while this Stipulation is in effect.
6. Respondent will obtain a comprehensive mental status evaluation, including substance abuse, and a determination of the level of care, if any, required for Respondent from a Board-approved mental health provider. The Board shall review the report of and all materials related to the evaluation and make a final determination on the case.

7. The Board agrees that it will not institute disciplinary proceedings while this Stipulation is in effect as long as Respondent remains in compliance with this Stipulation and as long as the Board does not learn of substantially new information that would warrant action.

8. Nothing in this Stipulation shall constitute disciplinary action or a finding that Respondent has engaged in substandard practice. The Board has made no final determinations regarding Respondent's professional competency or professional conduct. This Stipulation shall constitute a public record, but is not reportable to the National Practitioner Databank or the Healthcare Integrity Protection Databank.

9. Once the reason for the Interim Cessation of Practice has been resolved to the satisfaction of the Board, the Board will make a final determination on the case, lift the Interim Cessation of Practice, and either proceed with disciplinary action or dismiss the case. Should the Board proceed with discipline, nothing in this Stipulation prevents the Board from ordering a summary suspension should the Board determine that Respondent is unable to practice with reasonable skill and safety and/or emergency action should be taken under § § 24-4-104 and 12-43-224(2) (c) (II), C.R.S.

10. Nothing in this Stipulation shall preclude the Board from initiating disciplinary action on any other disciplinary matter, other than case number 2012-001903, that comes before the Board pursuant to §12-43-222, C.R.S., or from issuing a Final Agency Order on a case other than case number 2012-001903, even while this Stipulation is in effect.

11. The terms of this Stipulation have been mutually negotiated and determined.

12. Both parties acknowledge that they are entering into this Stipulation voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Stipulation.

13. This Stipulation and all its terms and conditions constitute a valid Board Order for purposes of §12-43-222(1) (b), C.R.S.

14. Respondent acknowledges and agrees that any violation of this Stipulation shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Stipulation, and this Stipulation shall remain operative and in full force and effect.

15. This Stipulation constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Stipulation is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Stipulation shall be given full force and effect.

16. Any expenses incurred or associated with this Stipulation in order to comply with any of the requirements thereof shall be the sole responsibility of Respondent and not the Board.

17. This Stipulation shall become effective when accepted and signed on behalf of the Board.
18. This Stipulation shall be admissible as evidence at any hearing held before the Board.
19. This Stipulation shall constitute a public record in the custody of the Board.

RESPONDENT

Rosalind Smith LPC

Rosalind R. Smith, LPC 3545

Dated: 5/31/12

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

Ronne M. Hines

Ronne M. Hines
Program Director

Effective Date: This 5th day of
June, 2012.